

AGREEMENT TO AMEND CONTRACT
(Amendment # ____)

WARNING: ALL PARTIES, INCLUDING ANY ~~LEADER~~ AND ~~SETTLEMENT AGENT~~, MUST BE PROVIDED A COPY OF THIS AMENDMENT.

_____, as Buyer, and
_____, as Seller,
have entered into a ~~contract~~ on the ~~Offer to Purchase and Contract~~ (form 2-T) or the ~~Offer to Purchase and Contract – Vacant Lot/Land~~
(form 12-T) ("~~Contract~~") regarding the ~~purchase and sale~~ of the ~~following property~~ (~~insert property address~~) _____
_____ ("Property").

Buyer and Seller hereby agree to amend the Contract as set forth below [check applicable box(es)]:

☐ **Additional Buyer.** By signing this amendment, (~~insert name only~~) _____ is added to the ~~Contract~~ as an ~~additional buyer~~ and will be included in the ~~definition~~ of "Buyer" in the ~~Contract~~. The ~~additional buyer named in this paragraph~~ agrees to be obligated to all ~~contract terms~~ of the ~~Contract~~, including any ~~amendments~~ or ~~addenda thereto~~, and is entitled to all ~~rights and privileges~~ given to Buyer in the ~~Contract~~. Any party ~~currently named~~ as Buyer in the ~~Contract~~ will continue to be fully obligated and is not released from the ~~Contract~~ by Seller. Every party to the ~~Contract~~, as well as the ~~additional buyer named above~~, must sign this amendment for it to be effective.

☐ **Purchase Price.** The ~~Purchase Price~~ is hereby changed from: \$ _____ to: \$ _____.

☐ **(Additional) Earnest Money.** The (Additional) ~~Earnest Money Deposit~~ is hereby changed from: \$ _____ to: \$ _____.

☐ **(Additional) Earnest Money Deposit Date.** The date by which the (Additional) ~~Earnest Money Deposit~~ shall be paid to ~~Escrow Agent~~ is hereby changed to extend through 5:00 p.m. on: _____.

☐ **Due Diligence Fee.** The ~~Due Diligence Fee~~ paid to Seller is hereby changed from: \$ _____ to: \$ _____.

☐ **Due Diligence Period.** The ~~expiration date~~ of the ~~Due Diligence Period~~ is hereby changed to extend through 5:00 p.m. on _____, **TIME IS OF THE ESSENCE.**

☐ **Escrow Agent.** The ~~Escrow Agent~~ is hereby changed to: _____, ("Successor Escrow Agent") and the ~~Escrow Agent named in the Contract~~ is hereby authorized and directed by the parties to release the ~~Earnest Money Deposit~~ in the amount of \$ _____ to the Successor Escrow Agent.

ACKNOWLEDGMENT OF RECEIPT OF EARNEST MONEY DEPOSIT

Successor Escrow Agent hereby acknowledges receipt of the ~~Earnest Money Deposit~~ and agrees to hold and disburse the same in accordance with the terms of the ~~Contract~~.

Signature of Successor Escrow Agent

Date _____

(Print Name)



☐ ~~Settlement Date.~~ The ~~Settlement Date~~ is ~~being changed~~ to: _____.
☐ ~~(check only if the following also will apply)~~ The ~~Delay in Settlement/Closing paragraph~~ in the ~~Contract~~ is ~~being amended~~
for the ~~sole purpose~~ of ~~changing~~ the ~~permitted time~~ a ~~Delaying Party may delay~~ in ~~completing Settlement and Closing from~~
~~seven (7) days to four (4) days.~~

☐ ~~Expenses.~~ The ~~amount Seller shall pay at Settlement toward Buyer's expenses associated with the purchase of the Property~~ is ~~being~~
~~changed from:~~ \$ _____ to: \$ _____.

☐ ~~Home Warranty.~~ The ~~Home Warranty paragraph~~ of the ~~Contract~~ is ~~being changed~~ to ~~provide as follows:~~
☐ No ~~home warranty~~ is to be ~~provided~~ by ~~Seller.~~
☐ ~~Buyer may obtain a one-year home warranty at a cost not to exceed \$ _____ which includes sales tax and Seller agrees to~~
~~pay for it at Settlement.~~

All ~~terms and conditions~~ of the ~~Contract~~ not ~~specifically amended herein~~ shall ~~remain~~ in full force and effect.

THE NORTH CAROLINA ASSOCIATION OF REALTORS®, INC. MAKES NO REPRESENTATION AS TO THE LEGAL
VALIDITY OR ADEQUACY OF ANY PROVISION OF THIS FORM IN ANY SPECIFIC TRANSACTION.

Buyer: _____ Date _____ Seller: _____ Date _____

Buyer: _____ Date _____ Seller: _____ Date _____

Entity Buyer

(Name of LLC/Corporation/Partnership/Trust/etc.)

By: _____

Name: _____

Title: _____

Date: _____

Entity Seller:

(Name of LLC/Corporation/Partnership/Trust/etc.)

By: _____

Name: _____

Title: _____

Date: _____